Astronomical Functions Act 2010

No. 11, 2010

Compilation No. 3

Compilation date:	1 July 2018
Includes amendments up to:	Act No. 59, 2018
Registered:	2 August 2018

Prepared by the Office of Parliamentary Counsel, Canberra

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About this compilation

This compilation

This is a compilation of the *Astronomical Functions Act 2010* that shows the text of the law as amended and in force on 1 July 2018 (the ***compilation date***).

The notes at the end of this compilation (the ***endnotes***) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Part 1—Preliminary 1

1 Short title 1
2 Commencement 1
3 Simplified outline of this Act 1
4 Definitions 1
5 Crown to be bound 2
6 Extension to external Territories 2
7 Extra-territorial application 2

Part 3—Astronomical functions 3

11 Astronomical functions 3
12 Fees 4

Part 5—Miscellaneous 5

23 Delegation by the Secretary 5
24 Executive power of the Commonwealth 5
25 Concurrent operation of State and Territory laws 5
26 Regulations 5

Endnotes 6

Endnote 1—About the endnotes 6

Endnote 2—Abbreviation key 8

Endnote 3—Legislation history 9

Endnote 4—Amendment history 10

Authorised Version C2018C00307 registered 02/08/2018

Authorised Version C2018C00307 registered 02/08/2018

An Act to provide for astronomical functions, and for other purposes

Part 1—Preliminary

1 Short title

This Act may be cited as the *Astronomical Functions Act 2010*.

2 Commencement

This Act commences on 1 July 2010.

3 Simplified outline of this Act

This Act provides that the Secretary has various functions relating to optical astronomy.

The Commonwealth may charge fees in connection with things done in the performance of the Secretary's functions.

The Secretary may delegate functions and powers under this Act to APS employees in the Department.

4 Definitions

In this Act:

optical includes radiation in the near-ultraviolet, visible and infrared portions of the electromagnetic spectrum.

optical astronomy facility means a telescope, or other facility, for making optical astronomical observations, and includes any associated equipment, buildings or infrastructure.

Secretary means the Secretary of the Department.

Authorised Version C2018C00307 registered 02/08/2018

5 Crown to be bound

This Act binds the Crown in each of its capacities.

6 Extension to external Territories

This Act extends to every external Territory.

7 Extra-territorial application

This Act applies both within and outside Australia.

Authorised Version C2018C00307 registered 02/08/2018

Part 3—Astronomical functions

11 Astronomical functions

(1) The Secretary has functions relating to optical astronomy.

(2) Those functions include the following:

(a) to operate, construct, develop and maintain national optical astronomy facilities;

(b) to support optical astronomy facilities;

(c) to consult and co-operate with other persons, organisations and governments on matters relating to optical astronomy;

(d) to facilitate access to optical astronomy facilities;

(e) to develop, manufacture and provide instrumentation for optical astronomy facilities;

(f) to support the development, manufacture and provision of instrumentation for optical astronomy facilities;

(g) to support, encourage, conduct and evaluate research about matters relating to optical astronomy;

(h) to support, encourage, conduct and evaluate educational, promotional and community awareness programs that are relevant to optical astronomy;

(i) to publish (whether on the internet or otherwise) reports, papers and information relating to optical astronomy;

(j) to advise the Minister about matters relating to optical astronomy;

(k) to implement Australia's international obligations in relation to optical astronomy;

(l) such other functions (if any) as are specified in the regulations;

(m) to do anything incidental to or conducive to the performance of any of the above functions.

(3) Subsection (2) does not limit subsection (1).

Authorised Version C2018C00307 registered 02/08/2018

Note: For delegation of functions, see section 23.

12 Fees

The Commonwealth may charge fees for things done in the performance of the functions conferred by section 11.

Authorised Version C2018C00307 registered 02/08/2018

Part 5—Miscellaneous

23 Delegation by the Secretary

(1) The Secretary may, by writing, delegate all or any of the Secretary's functions or powers under this Act to an APS employee in the Department who has expertise appropriate to the function or power delegated.

(3) In exercising functions or powers under a delegation, the delegate must comply with any directions of the Secretary.

24 Executive power of the Commonwealth

This Act does not limit the executive power of the Commonwealth.

25 Concurrent operation of State and Territory laws

This Act is not intended to exclude or limit the operation of a law of a State or Territory that is capable of operating concurrently with this Act.

26 Regulations

The Governor-General may make regulations prescribing matters:

(a) required or permitted to be prescribed by this Act; or

(b) necessary or convenient to be prescribed for carrying out or giving effect to this Act.

Authorised Version C2018C00307 registered 02/08/2018

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes
Endnote 2—Abbreviation key
Endnote 3—Legislation history
Endnote 4—Amendment history

Abbreviation key—Endnote 2
The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4
Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes
The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments
A misdescribed amendment is an amendment that does not accurately describe the amendment to be made. If, despite the misdescription, the amendment can

Authorised Version C2018C00307 registered 02/08/2018

be given effect as intended, the amendment is incorporated into the compiled law and the abbreviation "(md)" added to the details of the amendment included in the amendment history.

If a misdescribed amendment cannot be given effect as intended, the abbreviation "(md not incorp)" is added to the details of the amendment included in the amendment history.

Authorised Version C2018C00307 registered 02/08/2018

Endnote 2—Abbreviation key

ad = added or inserted

am = amended

amdt = amendment

c = clause(s)

C[x] = Compilation No. x

Ch = Chapter(s)

def = definition(s)

Dict = Dictionary

disallowed = disallowed by Parliament

Div = Division(s)

ed = editorial change

exp = expires/expired or ceases/ceased to have effect

F = Federal Register of Legislation

gaz = gazette

LA = *Legislation Act 2003*

LIA = *Legislative Instruments Act 2003*

(md) = misdescribed amendment can be given effect

(md not incorp) = misdescribed amendment cannot be given effect

mod = modified/modification

No. = Number(s)

o = order(s)

Ord = Ordinance

orig = original

par = paragraph(s)/subparagraph(s)/sub-subparagraph(s)

pres = present

prev = previous

(prev…) = previously

Pt = Part(s)

r = regulation(s)/rule(s)

reloc = relocated

renum = renumbered

rep = repealed

rs = repealed and substituted

s = section(s)/subsection(s)

Sch = Schedule(s)

Sdiv = Subdivision(s)

SLI = Select Legislative Instrument

SR = Statutory Rules

Sub-Ch = Sub-Chapter(s)

SubPt = Subpart(s)

<u>underlining</u> = whole or part not commenced or to be commenced

Authorised Version C2018C00307 registered 02/08/2018

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Australian Astronomical Observatory Act 2010	11, 2010	11 Mar 2010	1 July 2010 (s 2)	
Acts Interpretation Amendment Act 2011	46, 2011	27 June 2011	Sch 2 (items 100–106) and Sch 3 (items 10, 11): 27 Dec 2011 (s 2(1) items 3, 12)	Sch 3 (items 10, 11)
Australian Astronomical Observatory (Transition) Act 2018	59, 2018	29 June 2018	Sch 1 (items 1–6) and Sch 2: 1 July 2018 (s 2(1) item 1)	Sch 2

Authorised Version C2018C00307 registered 02/08/2018

Endnote 4—Amendment history

Provision affected	How affected
Title	am No 59, 2018
Part 1	
s 1	am No 59, 2018
s 3	rs No 59, 2018
s 4	am No 59, 2018
Part 2	rep No 59, 2018
s 8	rep No 59, 2018
s 9	am No 46, 2011
	rep No 59, 2018
s. 10	am. No. 46, 2011
	rep No 59, 2018
Part 4	rep No 59, 2018
s 13	rep No 59, 2018
s 14	rep No 59, 2018
s 15	am No 46, 2011
	rep No 59, 2018
s 16	rep No 59, 2018
s 17	rep No 59, 2018
s 18	rep No 59, 2018
s 19	rep No 59, 2018
s 20	rep No 59, 2018
s 21	rep No 59, 2018
s 22	rep No 59, 2018
Part 5	
s 23	am No 59, 2018

Authorised Version C2018C00307 registered 02/08/2018